

It is to be observed that neither the statutes of 37 E. 3. ca. 18. 38 E. 3. cap. 9. 42 E. 3. ca. 3. 17 R. 2. ca. 6. nor any other statute taketh away the jurisdiction of any settled court of justice, neither is the court of star-chamber named in any of them, and yet was it a court then and before that time.

Divers speciall acts of parliament have been also jurisdiction to this court, viz. 12 R. 2. ca. 11. 2 R. 2. cap. 5. 13 H. 4. cap. 7. 33 H. 8. cap. 1. 4 & 5 Ph. and M. cap. 8. 5 Eliz. ca. 9, 10. & cap. 14. 27 Eliz. cap. 4.

And seeing the proceeding according to the laws and customes of this realm cannot by one rule of law suffice to punish in every case the exorbitancy and enormity of some great horrible crimes and offences, and especially of great men, this court dealeth with them, to the end that the medicine may be according to the disease, and the punishment according to the offence, *Ut pœna ad paucos, metus ad omnes perveniat*, without respect of persons, be they publique or private, great or small.

As for oppression, and other exorbitant offences of great men, (whom inferior judges and jurors (though they should not) would in respect of their greatnesse be afraid to offend) bribery, extortion, maintenance, champerty, imbracery, forgery, perjury, disseisers of false and dangerous rumours, news, and scandalous libelling, false and partiall misdemeanours of sherifs and bailiffs of liberties, frauds, deceits, great and horrible riots, routs, and unlawfull assemblies, single combats, challenges, duels, and other hainous and extraordinary offences and misdemeanours; but ordinary, and such offences as may be sufficiently and condignly punished by the proceeding of the common laws, this court leaveth to the ordinary courts of justice and dealeth not with them, *ne dignitas hujus curiæ vilesceret*, as before is said.

The proceeding in this court is by bill or information, by examination of the defendant upon interrogatories, and by examination of witnesses, and rarely *ore tenus*, upon the confession of the party in writing under his hand, which he again must freely confesse in open court, upon which confession in open court, the court doth proceed. But if his confession be set down too short, or otherwise then he meant, he may deny it, and then they cannot proceed against him but by bill or information, which is the fairest way.

The informations, bills, answers, replications, &c. and interrogatories are in English, and ingrossed in parchment, and filed up. All the writs and processe of the court are under the great seal: the sentences, decrees and acts of this court are ingrossed in a fair book with the names of the lords and others of the kings counsell and justices that were present and gave their voices.

In an information in this court by the attorney generall against Sir Stephen Procter, Birkenhead and others for conspiracy against, and scandall of the earl of Northampton, and Edward lord Wootton two of his majesties privy counsell: at the hearing of which cause there sat eight in court, and four of them condemned the defendant: and the lord chancelour, the two bishops, and the chancelour of the exchequer acquitted him. And the question was, whether the defendant should be condemned or no: and herein it was moved by the kings learned counsell, that when the voices be equal,

The jurisdiction
of this court

Camden Brit.
130. *In camera
stellata tractantur
criminalia, per-
juria, imposturae,
delus malis, ex-
cessus, &c.*

For proceeding,
ore tenus, see be-
fore ro. claus.
17 H. 6. John
Fords case.
Rot. claus.
42 E. 3. the ab-
bot of Brueries
case, &c. *In no-
serius ordo est or-
dinem juris non
servare.*

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Pasc. 12 Ja. Reg.

equall, that in that case, of which part the lord chancellor was, on that side it should be decreed, without regard, whether it was for the plaintiff or defendant: and it was resolved, that regularly *et de communi jure*, in respect of the equality of the voices no sentence could be given in that case, as it holdeth in the high court of parliament, and all other courts, according to the old rule, *paribus sententiis reus absolvitur*. And therefore the presidents of this court were to be searched; for except presidents could make a difference between this court and others, the defendant could not be sentenced. Whereupon the court referred this question to the two chief justices, that they calling unto them the kings learned counsell to view presidents, whether by the custome of this court the common rule in other courts is altered. Before whom in the presence of the kings learned counsell two presidents were produced for proof of the said custome, viz. one Termino Hil. anno 39 Eliz. between Gibson plaintiff, and Griffith and others defendants: wherein the complaint was for a riot. And upon hearing of the cause eight sat in court, and four gave their sentence that the defendants were guilty, and the other four, whereof the lord chancelour was one, did acquit the defendants, and no sentence of condemnation was ever entred. But the justices took it, that that president tended not to prove any such custome, for it agreed with the rule in other courts. Another president was shewed, Termino Hil. 45 Eliz. in an information by the queens attorny generall against Bathern and others for forging of a will, &c. Upon the hearing of the cause, the presence consisting of eight, whereof four gave sentence against the defendant for forgery, and to be punished according to the statute of 5 Eliz. the other four, whereof the lord chancelour was one, found him guilty of a misdemeanour, and not of the forgery, and imposed a fine of five hundred pound only, and imprisonment, and that was entred according to the lord chancelours voice. But no rule of court was shewed for entring thereof in that manner: so as it appeared not that it was ever moved, or debated in court, and in that case all concluded against the defendant, and it is but one president. Now whether this one, being such a one as it is, and so late, be sufficient to alter the generall law and course of all other courts, I leave to the judgment of this honourable court: and sentence was never given against Sir Stephen Procter agreeable to the generall rule in other courts. See Rot. parl. 8 H. 6. nu. 28.

Erodus fo. 172.

Hil. 39 Eliz. in camera stellata, Gibsons case.

Hil. 45 EL. in camera stellata, Batherns case.

Lawrence Hide and Henry Hide esquires, exhibited a bill of complaint against George Coriet and others upon the statute of 32 H. 8. cap. 9. for unlawfull maintenance; and complained for three severall leases for certain years of the parsonage of Dynton in the county of Wilt. whereof the lessor nor any of his ancestors were in possession within a year before, &c. and pursued the statute: upon which part of the bill (for the bill concerned riots and other things) the defendant demurred in law, and the causes of the demurrer were. First, that by the said act this court had no jurisdiction of this cause upon this statute, because that the act which is introductory of a new law did not give jurisdiction to this court, but the suit must be in the courts of the common law upon this act, which (said they) also appeared, in that in the remedy given by the act in this clause, *In which action, bill, plaint,*

Mic. 36 & 37 EL.